

A.F.R.

Court No. - 36

Case :- WRIT - C No. - 29001 of 2018

Petitioner :- Divisional Engineer, Electricity Distribution Division-I

Respondent :- Raman Singh And Another

Counsel for Petitioner :- Awadhesh Kumar Saxena

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner and perused the record.

The award passed by the Permanent Lok Adalat dated 26.6.2018 in PLA Complaint Case No.3 of 2016 (Raman Singh v. Divisional Engineer, Electricity Distribution Division-I & Anr.) is challenged on the ground that the Permanent Lok Adalat had no jurisdiction to entertain the claim petition. To substantiate this contention, the submissions of learned counsel for the petitioner are two folds:-

Firstly, it is contended that the claimant was not a consumer of electricity and, as such, the claim petition before Permanent Lok Adalat was not maintainable. Even otherwise, the dispute being raised by the claimant was of civil nature which was beyond the jurisdiction of the Permanent Lok Adalat. The assessment of compensation payable to the owner of the buffalo was subject matter of evidence which could have been adjudicated only in a civil suit.

Second submission of learned counsel for the petitioner is that the claimant owner was entitled to Rs.16,400/- only for the death of buffalo due to electrocution as per the Circular dated 3.2.2016. The claim was duly recommended by the Competent Authority but the payment was subject matter of approval of the Regional Office. Steps had already been taken for payment of compensation to the claimant, it was, therefore, not open for the Permanent Lok Adalat to entertain the claim petition and award

Rs.40,000/- towards compensation that too without any evidence. The Permanent Lok Adalat has itself recorded that the receipts filed by the claimant to prove the price of the buffalo was not acceptable as they were plain pieces of papers.

It is submitted that every such incident which occurs as a result of the electrical fixtures is required to be intimated to the authorised person of the Generating Company or licensee within 24 hours of the knowledge of the occurrence thereof. On such intimation, the Inspector as defined under the Intimation of Accidents (Form and Time of Service of Notice) Rules, 2005 (in short the Rules, 2005) is to make an enquiry and report the matter to the Competent Authority who will deal with such matters.

It is submitted that no such intimation had been given by the claimant prior to filing of the claim petition and, as such, he was not entitled to any relief.

Reference has also been made to the U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum and Electricity Ombudsman Regulations, 2007 (in short the Regulation, 2007) wherein Consumer Redressal Forum has been created to state that the claimant ought to have approached the Consumer Redressal Forum for redressal for his grievances.

With regard to the first submission of the petitioner that the Permanent Lok Adalat has no jurisdiction to entertain the claim petition, relevant is to note that the Permanent Lok Adalats have been set up under the Legal Services Authorities Act, 1987 (in short 'the Act, 1987') in addition to and not in derogation of the forums provided under various statutes. The establishment of Permanent Lok Adalats and conferring them jurisdiction up to a specific pecuniary limit in respect of one or more public utility services as defined in Section 22-A(b) of the Act, 1987, before the dispute is brought before any Court by any party to the dispute, is an alternative institutional mechanism or arrangement made by the Parliament. In the case of **Bar Council of India v. Union of India**

reported in **(2012) 8 SCC 243**, while turning down the challenge to the constitutionality of the Chapter VI-A brought in 1987 by 2002 Amendment Act, the Apex Court has observed in Paragraphs 22, 23, 24 and 25 as under:-

“22. Chapter VI-A inserted by the 2002 Amendment Act in 1987 Act, as its title suggests, provides for pre-litigation conciliation and settlement procedure. The disputes relating to public utility service like transport service for carriage of passengers or goods by air, road or water or postal, telegraph or telephone service or supply of power, light or water or public conservancy system or sanitation or service in hospital or dispensary or insurance service, etc., in the very scheme of things deserve to be settled expeditiously. Prolonged dispute in respect of the above matters between the service provider and an aggrieved party may result in irretrievable damage to either party to the dispute. Today, with increasing number of cases, the judicial courts are not able to cope with the heavy burden of inflow of cases and the matters coming before them. The disputes in relation to public utility service need urgent attention with focus on their resolution at threshold by conciliation and settlement and if for any reason such effort fails, then to have such disputes adjudicated through an appropriate mechanism as early as may be possible. With large population in the country and many public utility services being provided by various service providers, the disputes in relation to these services are not infrequent between the service providers and common man. Slow motion procedures in the judicial courts are not conducive for adjudication of disputes relating to public utility service.

23. The statement of objects and reasons itself spells out the salient features of Chapter VI-A. By bringing in this law, the litigation concerning public utility service is sought to be nipped in the bud by first affording the parties to such dispute an opportunity to settle their dispute through the endeavours of the Permanent Lok Adalat and if such effort fails then to have the dispute between the parties adjudicated through the decision of the Permanent Lok Adalat. The mechanism provided in Chapter VI-A enables a party to a dispute relating to public utility service to approach the Permanent Lok Adalat for the settlement of dispute before the dispute is brought before any court.

24. Parliament can definitely set up effective alternative institutional

mechanisms or make arrangements which may be more efficacious than the ordinary mechanism of adjudication of disputes through the judicial courts. Such institutional mechanisms or arrangements by no stretch of imagination can be said to be contrary to constitutional scheme or against the rule of law. The establishment of Permanent Lok Adalats and conferring them jurisdiction upto a specific pecuniary limit in respect of one or more public utility services as defined in Section 22-A(b) before the dispute is brought before any court by any party to the dispute is not anathema to the rule of law. Instead of ordinary civil courts, if other institutional mechanisms are set up or arrangements are made by the Parliament with an adjudicatory power, in our view, such institutional mechanisms or arrangements cannot be faulted on the ground of arbitrariness or irrationality.

25. The Permanent Lok Adalats under the 1987 Act (as amended by the 2002 Amendment Act) are in addition to and not in derogation of Fora provided under various statutes. This position is accepted by the Central Government in their counter affidavit. “

It is further observed therein that the settlement of dispute between the parties in the matters of public utility services is the main theme. However, where despite the endeavours and efforts of the Permanent Lok Adalat, the settlement between the parties is not through and the parties are required to have their dispute determined and adjudicated, to avoid delay in adjudication of disputes relating to public utility services, Parliament has intervened and conferred power of adjudication upon the Permanent Lok Adalat. It has further proceeded to hold in Paragraph '33' of the said pronouncement that *sine qua non* of taking cognizance of a dispute concerning public utility services by the Permanent Lok Adalat is that neither party to a dispute has approached the Civil court. The alternative institutional mechanism in Chapter VI-A with regard to the disputes concerning public utility service is intended to provide an affordable, speedy and efficient mechanism to secure justice. In furtherance of this observation, Paragraph '34' reads as under:-

“34.....By not making applicable the Code of Civil Procedure and the statutory provisions of the Indian Evidence Act, there is no compromise on the quality of determination of dispute since the Permanent Lok

Adalat has to be objective, decide the dispute with fairness and follow the principles of natural justice. Sense of justice and equity continue to guide the Permanent Lok Adalat while conducting conciliation proceedings or when the conciliation proceedings fail, in deciding a dispute on merit. “

Thus, with the said observation, the Apex Court has upheld the validity of the provisions of Chapter VI-A brought in 1987 Act by 2002 Amendment Act and noted that having regard to the nature of dispute upto a specific pecuniary limit relating to public utility service and resolution of such dispute by the procedure provided in Sections 22-C,(1) to 22-C(8), it is important that such dispute is brought to an end at the earliest and is not prolonged unnecessarily.

In another judgment in **S.N. Pandey v. Union of India** reported in **(2012) (8) SCC 261**, the Apex court while upholding the validity of the aforesaid provisions has held as under:-

“2. We have gone through the provisions of the said Chapter which contemplate the setting up of Permanent Lok Adalats for deciding disputes in which public utility services is one of the matters involved. It is quite obvious that the effort of the legislature is to decrease the workload in the courts by resorting to alternative dispute resolution. Lok Adalat is a mode of dispute resolution which has been in vogue since over two decades. Hundreds of thousands of cases have been settled through this mechanism and is undisputedly a fast means of dispensation of justice. The litigation is brought to a quick end with no further appeals or anguish to the litigants. The constitution of the Permanent Lok Adalat mechanism contemplates the judicial officer or a retired judicial officer being there along with other persons having adequate experience in the public utility services.”

Section 22-D of the Act, 1987 further provides that the procedure applicable to the Code of Civil Procedure, 1908 and the statutory provisions of the Indian Evidence Act, 1872 are not applicable in the decision on a dispute on merits under the Act rather the Permanent Lok Adalat shall be guided by the principles of natural justice, objectivity, fairplay and equity and other principles of justice. This alternative mechanism is intended to provide an affordable, speedy and efficient mechanism to secure justice. The

Act thus provides safeguard that in the complaint involving complicated issues regarding recording of evidence of experts, summoning of witnesses etc. the same shall not be entertained by the Permanent Lok Adalat and the right of the complainant to approach the civil court for necessary relief would, therefore, be available. The Act thus supplements the jurisdiction of the civil court in a dispute which does not relate to any criminal offence.

In the light of the said legal position, considering the effect of the first proviso to sub-section (1) of Section 22-C of the Act, 1987, it is held that the Permanent Lok Adalats have jurisdiction to entertain all disputes of civil nature where the jurisdiction of the Civil court is not barred expressly or impliedly by the Statutory provisions.

In so far as the grievances of a consumer of electricity is concerned, the Electricity Act 2003 and Electricity Supply Code, 2005 are comprehensive codes to take care of all such nature of disputes. The jurisdiction of civil court in such matters is, therefore, taken away expressly by Section 145 of the Electricity Act 2003.

Whereas, in a case of claim put by a member of public for damages caused to him, for the fault of the electricity department, the matter would fall within the jurisdiction of the Permanent Lok Adalat, inasmuch as, "supply of power" by any establishment to the public is included within the meaning of "Public utility service" defined under Section 22-A of the Legal Service Authority Act, 1987. The claimant who belongs to the weaker section of society cannot be relegated to the tardy process of civil court for filing a civil suit. Such a direction would run contrary to the whole object of the Act, 1987.

If the arguments of learned counsel for the petitioner is accepted for a moment to relegate the claimant to approach the civil court for filing civil suit, the whole object of the Act, 1987 would be frustrated.

In view of the above, first argument of learned counsel for the

petitioner is found devoid of merits.

Second ground of challenge is based on the Circular dated 3.2.2016 issued by the Director (Administration). Suffice it to say that the said Circular is not binding on the court of law though it has a binding effect on the officials of the Corporation while admitting the claim for compensation in case of death or disability.

In the instance case, for the accident occurred on 25.8.2015, the claimant had submitted the proof of sending intimation to the petitioner department through registered post on 31.8.2015 and demanded Rs.1,25,000/- towards compensation. In order to find out as to what had happened in the matter of his claim, the claimant filed an application under RTI Act, reply to which was given on 1.10.2015 wherein it was intimated that the respondent no.2 had recommended the claim but the final decision has to be taken at the Regional level. The claim petition was filed in the year 2016, efforts were made by Permanent Lok Adalat for reconciliation but the respondent no.2 declined to enter into settlement and contested the matter on the plea of jurisdiction. The written statement was filed with the assertion that it was not possible to arrive at any amicable settlement, rather the claim could only be decided after evidence are led by the parties before a civil court.

Thus, the challenge was made to the jurisdiction of Permanent Lok Adalat saying that it was a matter of civil nature and was within the jurisdiction of the civil court only.

The award has been passed by the Permanent Lok Adalat on 26.6.2018. The present petition has been filed in the month of August of 2018. Noticeable fact is that even the compensation as admissible under the Circular dated 3.2.2016 has not been paid to the claimant till date. All efforts made by the Permanent Lok Adalat to settle the matter outside the Court had been stalled by the Corporation, raising plea of lack of jurisdiction. Thus the officers of the petitioner establishment have succeeded in stalling the payment of admitted compensation of Rs.16,400/- for a period of

approximately 3 years.

Such an approach of the officers of a public body like U.P. Power Corporation cannot be accepted.

The claimant is a man of small means, he is fighting for getting adequate compensation for the loss of animal who was source of his livelihood. The petitioner did not raise any dispute about occurrence of the incident or by pleading No-fault. An electric line of 11,000 volts snapped from the pole was lying unattended in a field where animals regularly go to drink water and feed themselves.

The electricity distribution is a dangerous activity and a person undertaking such an activity involving the hazardous or risky exposure to human life is under obligation to maintain it to the optimum level by using all reasonable means to keep the electricity harmless. In the instant case, the animal came in contact with the live high tension wire lying unattended in the field. Indisputably, it is a case of dereliction of statutory duty on the part of the petitioner establishment, which is engaged in distribution of electricity. The electric undertaking must maintain all its installations, devices, poles including their fixtures in such a manner that the passer-by whether human or animal, on coming into contact with them, are not hit by the leakage of electric current. The Apex Court in the case of **Smt. Shakuntala Devi v. Delhi Electric Supply Undertaking & Ors.** reported in (1995) 2 SCC 369 has observed as that the statutory authority has a duty to maintain electric installation lines in proper condition so as to avoid any threat to the lives of people.

The negligence on the part of the petitioner in discharge of its onerous duty is writ large on the face of the record of the instant case.

The fact that the incident was reported by the claimant at the first instance to the Officers of the petitioner establishment cannot be denied in view of the categorical stand of the claimant that he

reported the said incident by a letter sent through registered post on 31.8.2018. After waiting for sometime, he moved application under RTI Act wherein information was provided to him that his claim had been forwarded to the Competent Authority. The submission of learned counsel for the petitioner that the intimation given by the claimant was not due intimation within the meaning of the Rules, 2005 as noted above is wholly misconceived. The said rule rather casts a responsibility upon the local officer of the Corporation to report any such incident within 24 hours of the knowledge of the occurrence in writing in Form-A as appended therein. No such report has been submitted by the Officer namely the Electrical Inspector appointed under sub-section (1) of the Section 162 of the Act.

Even before the Permanent Lok Adalat, no efforts have been made by the petitioner for reconciliation rather the claim was contested on the ground that it is of civil nature and the assessment regarding monetary value of the animal can be done only by the civil court after appreciation of evidence. Such an approach of the public corporation cannot be accepted and is to be deprecated in so many words. The public bodies should be discouraged in indulging in thoughtless and reckless litigation. They should delve on the merits and demerits of their stand and then approach the courts of law in an objective manner and should avoid unnecessary litigation.

For the aforesaid reasons, the contentions of learned counsel for the petitioner regarding the jurisdiction and maintainability of the claim petition before the Permanent Lok Adalat are hereby repelled.

Reference made to the Regulations 2007 is wholly misconceived as the same only pertains to redressal of grievances of the consumer of the electricity.

In so far as the quantum of the award i.e. the compensation of Rs.40,000/- made by the Permanent Lok Adalat in the adjudication made after three years of the claim initially put by the

claimant, it cannot be, said to be excessive. No other point has been pressed.

The writ petition is found devoid of merits and hence **dismissed**.

(Sunita Agarwal, J.)

Order Date :- 29.8.2018
Jyotsana